Summer, 2003 Volume VI, Issue 1

The Mountainside

www.coolfontmountainside.com

Coolfont Mountainside Association

ANNUAL MEETING REPORT

New Board Members, New Goals for CMA



The Annual Meeting of the Coolfont Mountainside Association in July was highlighted by the election of two new (and two "old") board members and the approval of an ambitious project to revitalize our aging tennis courts.

The new board members are **Hallie Kerr** and **Cynthia Van Meter**, who were elected along with reelected board members **Elmer Broxson** and **Paul Kagen**.

The membership also reviewed the plans for the refurbishing of the tennis courts, which includes three re-paved courts and one new "sport court" created by placing a tough new "skin" over the old surface *(see accompanying article).*

Treasurer Paul Kagen presented the 2003-2004 CMA budget, which includes using reserve funds to repair the tennis courts. The CMA members approved the new budget, and work on the tennis court project will be underway this Fall.

Also at the meeting, members were briefed on the status of the water and sewer system—our vital infrastructure, which is a regulated utility under the laws of West Virginia. The water quality is very good, and quantity remains adequate, but the rains from the past few seasons take more than a year to recharge the aquifer, so levels have not fully recovered from the drought of 2001.

Also discussed were the need to contract our own snow removal and security services, since Coolfont Resort wants to end its provision of those services to CMA. The new CMA board has begun looking at both services to determine the best ways to keep the roads plowed and our community safe.

Elmer Broxson and Jim-Chiriaco reported on the approved plan to upgrade the drainage system on our roads. They discussed the importance of good drainage to maintain the surface material of the roads, and introduced a five-stage program to maintain the paved and gravel roads, and keep water flowing in the ditches, not across the road surface. *(See article, next page)*

The DACC chair, Jim Thompson, reported that the past year was a very busy year for new home construction on the mountainside. He also discussed the revisions his committee proposes to the DACC Regulations and Guidelines Document.

The day ended with the annual CMA dinner, organized by Elmer Broxson, and hosting around 60 CMA members and their families.

CMA Board Meetings and Potluck Dinners!

October 11th
Board: CMA Office
Potluck: Braun Q-2
November 15th
Board: CMA Office
Potluck: Copeland K-15
December 6th
Board: CMA Office
Potluck: Brydges Q-4
January 17th
Board: CMA Office
Potluck: Bain E-7
February 7th
Board: CMA Office
Potluck: Thompson R-4

HOST A POTLUCK DINNER!
It's easy, fun and a great way to meet your Coolfont Neighbors! Call Hallie Kerr, Social Committee Chair for details!



Jackson Bain, CMA Vice president and Newsletter Editor

Special Feature!



The Roads of Coolfont

Editor's note: Once again, we call on our resident historian, WV certified water operator, Board Member, wildlife expert and general handyman Elmer Broxson to educate us on an important part of our mountainside infrastructure. In this edition, he talks about our roads and how we work to overcome the forces of nature—which are constantly working to remove them. Here is his report:

"If you don't have drainage, you don't have a road!"



On September 18, 2002, Lon Dring, Chair of our Roads Committee and I met with Rebecca McCloud, the Natural Resources Conservation officer for this region (a USDA service). We wanted to get her advice on upgrading the drainage of our roads. In the early 1990's, she had designed the road in the S Section. We also consulted with Tom Riggleman, a retired WV State Highway Department foreman (whose quote is the title of this article). In light of their recommendations, I was able to persuade the board to postpone the $50,000 patching of the paved roads until we had improved the drainage on all our roads.

This spring, Jim Chiriaco, co chair of the roads committee, and I spent a day (fortunately in the rain!) observing and recording the actual water flow on the roads, down driveways and through the ditches and culverts. The result was a 12-page report written by Jim and presented to the board, which approved the plan it recommended. The document contained the Four Great Truths of Road Maintenance, and ended with Five Proposals.

The first of the great truths is the title above. The second: patch paved roads in the fall to prevent winter damage and grade gravel roads in the spring to repair snowplowing damage. The third: potholes mean poor drainage, not poor surface materials. And finally, leaves will pass through rather than clog properly-sized culverts.

As for the Five Proposals, we began implementing the first of these in June: fill potholes, clean ditches and culverts of leaves and eliminate standing water in the ditches. We began implementing the remaining four proposals in early September as soon as Robert Snidemiller, one of the Morgan County contractors cited by McCloud as qualified to carry out the upgrade, became available. The second proposal: grade the gravel roads to prevent ruts and potholes. The third: Solve the complicated problems of Warbler's Way, the road leading to lots K 12—17. The fourth and most costly proposal: Widen the shoulders on the roads and enlarge culverts and ditches as needed. Finally, the fifth proposal: Stop the flow of water from driveways onto CMA's gravel and paved roads.

Snidemiller and crew are working under the direction of our Operations Manager, John Hobday and myself. We hope to complete the entire project in September. If you have questions, complaints or complements, contact John Hobday or me. We're sorry about any delays you may encounter during this road upgrading project, but remember the immortal words of a former Florida governor: road delays (caused by construction) are a sign of progress!

Elmer Broxson

Development and Architectural Control Committee (DACC)



I would like to thank Charles Braun (Q-2) for agreeing to join Richard Kaufman, Linda Dunyan and me as DACC committee members.

We continue to receive inquiries about and applications for construction of new homes at CMA. Start of construction is anticipated at E-3, E-4, T-4, T-5 and T-6 by next spring.

I've had a lot of questions lately about tree issues. CMA is responsible for trees on common property. If you have a problem with a tree on common land, contact John Hobday at 304-258-8141. Property owners are responsible for trees on their property. Property owners may cut trees on their own property that are less than 6 inches in diameter if they are not desirable species like dogwood and redbud. Diseased trees, trees closer than 10 feet to a house and trees that are threatening a house are routinely approved for removal. Homeowners may cut and maintain up to two vistas on their property after approval by DACC. CMA is currently reviewing fire prevention and mitigation procedures for forested communities. This review may result in changes to our tree policies.

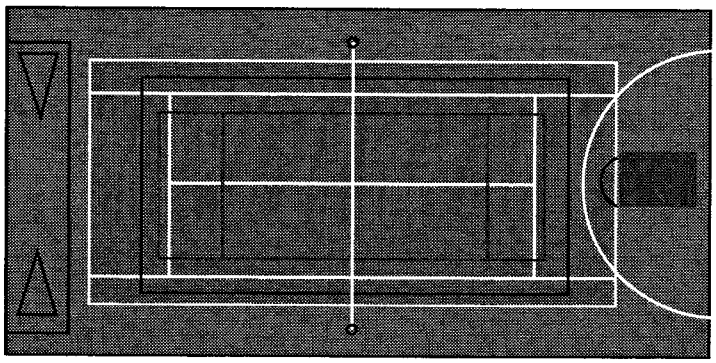
We are scheduled to review and approve the new Regulations and Guidelines for Building at Coolfont at the November 15th Board meeting. A couple of new points for the Guidelines: the Board has approved the requirement for 18" culverts for driveways for new houses in consonance with road upgrades now being done throughout CMA and we will include a 10 foot separation requirement for water and sewer lines. After approval the regulations will be posted on the CMA Website.

Jim Thompson, Chair

New Tennis Courts - Open Soon!

Work is almost complete at this writing on the final phase of revitalizing ("bringing back to life") our four tennis courts near the CMA swimming pool. The courts had deteriorated to the point of being virtually unusable due to erosion, subsidence, and thin court surfaces. The CMA board proposed—and the membership agreed - that three of the courts should be totally resurfaced, and the fourth court should be covered with a unique, durable polymer "skin" that would transform the playing surface into a multi-sport facility—a "Sport Court". The resurfacing of the three courts are now complete, and the sport court installation will be completed by the end of September, according to current plans.

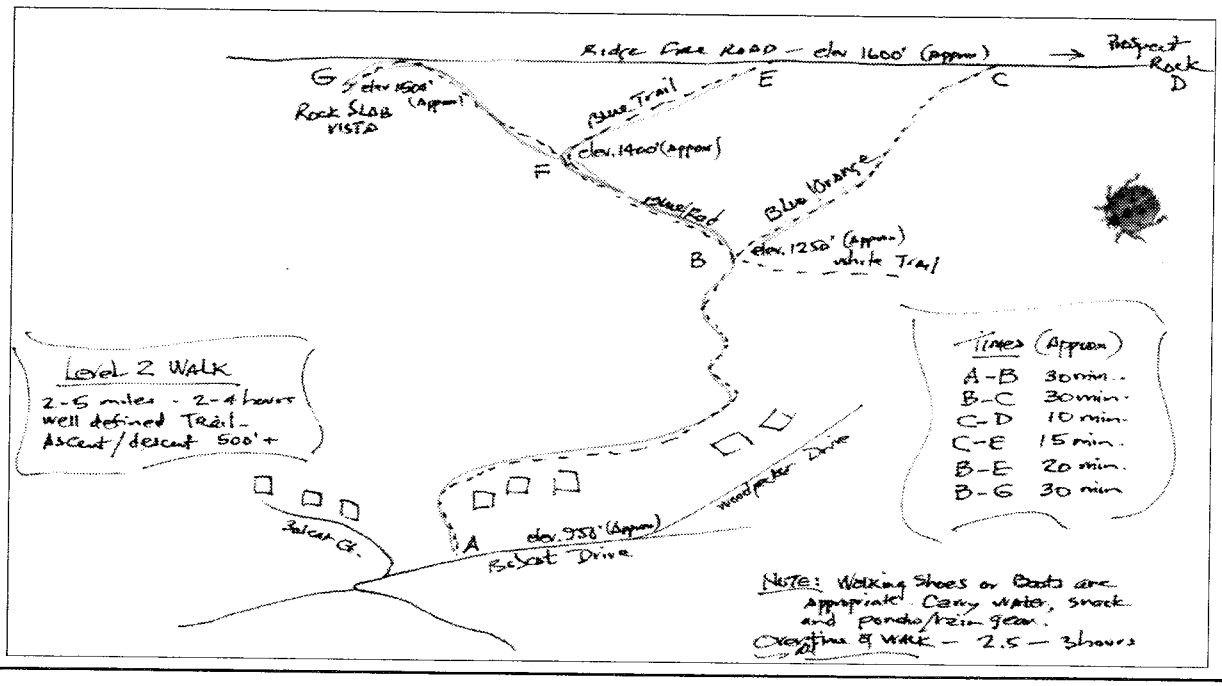
The new sport court will be a fully functioning tennis court, but will also offer playing lines and adjustable net heights for paddle tennis, volleyball, badminton, "pickle" ball, shuffleboard, and basketball, using the hoop at one end of the court. The surface is designed to "give" slightly, and is reportedly better on the knees in lateral movement than hard surfaces. Here's how the new Sport Court will look!





BLUE TRAIL WALK
Saturday, October 4, 2003 at 0930

CMA Members! An Invitation! Join Phyllis & Carroll Yingling for a Saturday morning walk on CMA's Blue Trail. Meet at the Trail entrance on Bobcat Drive - between J3 & K1-see enclosed map—for an enjoyable 2-3 hour walk. This trail is a Level 2 walk. We will have the option to end our jaunt at either Prospect Rock or the Rock Slab Vista. Hope to see you then. ***Phyllis & Carroll*** J-2 (258-3244)



From the Treasurer: CMA Financial Planning Continues



The CMA and the Water and Sewer budgets for the 2003-2004 year were approved by the members at the annual meeting in July. Based on approval of the CMA budget, invoices for annual assessments of $550 per house and $340 per lot were mailed out, due to be paid by August 18, 2003. I am pleased to report that most of you paid the assessment on time. We have collected over 93% of the income budgeted for this fiscal year. Those members who did not pay in a timely manner were billed the $50 late fee and will be charged Interest at 3% over prime as specified in our rules. As of the day I am writing this (late September), 5 members still have not paid their assessment. To those members I remind them that failure to pay the assessment can lead to the placing of a lien on the property and will prevent any action to be taken on proposed building plans which require approval of the DACC. During my past four years as Treasurer I have never had a member fail to pay the assessment. I expect our procrastinators to send in their checks and avoid future interest.

The major projects (Roads and Tennis Courts) included in the new CMA budget are now underway and are moving at a satisfactory rate. As projected, we will draw from our reserves later in the year to cover the approved budget deficit. While expenditures have been high in this, the first quarter of our fiscal year, I do not anticipate any financial difficulties to arise. There are, however, two major fiscal uncertainties to be faced. The Board has been advised that Coolfont Resort will not provide us with snow plowing services for the coming winter. The board is exploring possible snow plowing sources and we fully anticipate that a service will be in place for the upcoming snow season. The unknown is whether the cost of the snow plowing service will be as costly or more costly that the amounts we paid to the resort last year. The other fiscal uncertainty involves security on the mountainside. The resort has also informed us that they wish to discontinue the service they currently have with Wakenhut Security, the cost of which we share with the resort. Again the board is exploring alternatives and we face an uncertain cost level for security service.

The financial position of the Association is strong. We survived the hurricane in good shape and look forward to clear skies and good financial weather ahead.

The Water and Sewer system continues to operate successfully. The project to submeter our system in order to better identify leaks and control the system in moving ahead. There appears to have been some confusion over our recent billing. Some of you may have received both an Invoice and a Statement from our last billing dated August 31, 2003. The Invoice represents new billing. The Statement is a summary of activity in your account. It may include record of a prior credit or a prior unpaid bill or a prior unpaid late fee. If you receive a Statement, please pay the amount shown as balance due on the Statement since it details all your activity. The Invoice and Statement are NOT two bills. The first is a current bill the other is what you owe. If your account is clear and the Invoice and the Statement show the same amount due, we will not send a Statement.

I want to thank those members who make my job a pleasure by paying their assessments and water bills in a timely manner. I am concerned that after each quarter's water bill is rendered, approximately 10-20 members do not pay on time. Not only does it cost them a 10% penalty, but it makes the job of the volunteer Treasurer more time consuming. I urge each of you to pay promptly, thereby avoiding the penalty and making my job easier.

As always, I am ready to respond to any questions you may have about the financial condition of the Association or its Water and Sewer system.

Paul D. Kagen

CMA Board Meeting Snapshot

A full house in the CMA office for the September board meeting! (L to R): Joe Van Meter, Jim Thompson, Pail Kagen, Cynthia Van Meter, Evelyn Brydges, Joan Bradfield, Martha Ashelman, Jay Copeland, Richard Kaufman and and Hallie Kerr. Not seen: Elmer Broxson *(large knee in lower left!)* Operations Manager John Hobday, and intrepid photographer J. Bain.



The President's Column



'03 – '04 Marching Orders

By any measure, the annual meeting held in July was a success. There was a very good turnout, the weather was ideal, and we concluded all of our regular business and more. As in past years, there were reports from yours truly and each of our committees, a financial statement was displayed, a budget for the new fiscal year, 2003-2004, was presented and approved, and new elections were held.

But this brief summary does not do justice to all that was accomplished. Among the key items discussed, were the healthy state of our finances and the continued improvements in the water system and the swimming pool. In addition, 2 new projects were announced. One is the long term plan for the roads. The Board of Directors adopted a proposal to deal with the perennial problem of road maintenance by getting at the underlying causes of potholes, ruts, and loss of gravel. Most of these problems are caused by water runoff. The idea is to prevent or minimize the problems by clearing the ditches, replacing culverts, and diverting water from rain and springs from the roads. As I write this, a team of workers is re-digging the ditches on Bobcat Drive and elsewhere and replacing the old plastic dysfunctional culverts with new ones made of steel. When this phase of the project is completed we will turn our attention to spreading new gravel and re-paving.

The second new project is the refurbishing of the tennis courts. The members made clear at last year's annual meeting their wish that something be done with the tennis courts to make them more playable. The board undertook the necessary research and consultations to determine how best to make the necessary repairs and a proposal for improving all 4 courts was presented at this year's annual meeting. The members approved the proposal and the budget for it. All of us look forward to getting the job done.

Two members of the board were re-elected – Elmer Broxson and Paul Kagen, and 2 new members were elected – Hallie Kerr and Cynthia Van Meter. I want to express my personal gratitude to the 2 retiring board members – Joan Bradfield and Marie Barrett – for the excellent services they rendered on the board, along with my hopes that they will remain active in the affairs of the community.

Richard Kaufman

WHAT'S ON.....AND OFF THE MOUTAINSIDE

By Cindy Van Meter - Chair , Communications Committee

Every August, visitors to downtown Berkeley Springs see a giant poster announcing the Apple Butter Festival. Not as readily visible are signs to so many other treasures offered throughout Berkeley Springs and nearby towns. and villages. There's something for every taste, interest, and budget. Sports, dining, theater, arts, the unique, the educational, and the offbeat are here in "wild.....and wonderful" West Virginia for those who venture both on and off the mountainside.

For instance.....

- Historic Bavarian Inn – in Shepherdstown, WV. From noon to dusk on September 23, enjoy Octoberfest outdoors, with a German Band and Dancers, Arts and Crafts, German Food, Beers and Wines. Oooom Pah !! For details, visit www.bavarianinnwv.com. The admission fee is about $2.00 for adults and $.50 for children.

- "Patterson's Pharmacy" at 134 S. Spring Street, Martinsburg, WV (www.martinsburg.com/pattersons/pds.html) offers a bit of nostalgia in its old fashioned soda fountain serving **original vanilla phosphate sodas,** and a wonderfully unique ice cream concoction called a "Jo Jo". You have to try it ! It's oh, sooooooo good!

- Walk across the street from Patterson's and browse "Southwood Used and Rare Books" (www.southwoodbooks.com) 139 S. Queen Street. When I last browsed the shelves a few months ago, Patti Rice, the owner, had plans to add an intimate performance area with live jazz in the evening. If you visit, let me know how it turned out.

- Of course, don't forget Apple Butter Festival in Berkeley Springs on Saturday and Sunday, Oct. 11-12!

Share your adventures and misadventures in the CMA Newsletter ? Contact Cindy Van Meter at cndyvm@yahoo.com.

In Memoriam

We extend our heartfelt sympathies to Leila Keese and Dwayne Place on the passing of their mothers this summer.

Following are directory updates:

Lot Q-6 - Delete: Gunter & Linda Koenig
Add: Steven L. Strauss and Bess Altwerger
10925 Shadow Lane
Columbia, MD 21044
Phone: 410-964-2878
(We do not have an e-mail address yet.)

House A-3 - Delete John Manion
Add: James and Jennifer Collins
10 Warren Street
Berkeley Springs, WV 25411
(We need to verify phone number and obtain e-mail address.)

Lot S-6 - Delete David and Anne Barrow
Add: Vicki A. Zanca and Wayne W. Miller
4605 Briarpatch Court
Faifax, VA 22032
Phone: 703-425-4447
(We need to confirm e-mail address.)